

**SUBSTITUTE FOR
HOUSE BILL NO. 5249**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending section 20920 (MCL 333.20920), as amended by 2014 PA
413.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 20920. (1) A person shall not establish, operate, or
2 cause to be operated an ambulance operation unless the ambulance
3 operation is licensed under this section.

4 (2) Upon proper application and payment of a \$100.00 fee, the
5 department shall issue a license as an ambulance operation to a
6 person who meets the requirements of this part and the rules
7 promulgated under this part.

8 (3) An applicant shall specify in the application each



1 ambulance to be operated.

2 (4) An ambulance operation license shall specify the
3 ambulances licensed to be operated.

4 (5) An ambulance operation license shall state the highest
5 level of life support the ambulance operation is licensed to
6 provide. An ambulance operation shall operate in accordance with
7 this part, rules promulgated under this part, and approved medical
8 control authority protocols and, except as provided in section
9 20921a(2), shall not provide life support at a level that exceeds
10 its license and available licensed personnel or violates approved
11 medical control authority protocols.

12 (6) An ambulance operation license may be renewed annually
13 upon application to the department and payment of a \$100.00 renewal
14 fee. Before issuing a renewal license, the department shall
15 determine that the ambulance operation is in compliance with this
16 part, the rules promulgated under this part, and medical control
17 authority protocols.

18 (7) Beginning on July 22, 1997, an ambulance operation that
19 meets all of the following requirements may apply for an ambulance
20 operation upgrade license under subsection (8):

21 (a) On or before July 22, 1997, holds an ambulance operation
22 license that designates the ambulance operation either as a
23 transporting basic life support service or as a transporting
24 limited advanced life support service.

25 (b) Is a transporting basic life support service, that is able
26 to staff and equip 1 or more ambulances for the transport of
27 emergency patients at a life support level higher than basic life
28 support, or is a transporting limited advanced life support
29 service, that is able to staff and equip 1 or more ambulances for



1 the transport of emergency patients at the life support level of
2 advanced life support.

3 (c) Is owned or operated by or under contract to a local
4 **governmental** unit ~~of government~~ and providing first-line emergency
5 medical response to that local **governmental** unit ~~of government~~ on
6 or before July 22, 1997.

7 (d) Will provide the services described in subdivision (b)
8 only to the local **governmental** unit ~~of government~~ described in
9 subdivision (c), and only in response to a ~~911~~ **9-1-1** call or other
10 call for emergency transport.

11 (8) An ambulance operation meeting the requirements of
12 subsection (7) that applies for an ambulance operation upgrade
13 license shall include all of the following information in the
14 application provided by the department:

15 (a) Verification of all of the requirements of subsection (7)
16 including, but not limited to, a description of the staffing and
17 equipment to be used in providing the higher level of life support
18 services.

19 (b) If the applicant is a transporting basic life support
20 service, a plan of action to upgrade from providing basic life
21 support to providing limited advanced life support or advanced life
22 support to take place over a period of not more than 2 years. If
23 the applicant is a transporting limited advanced life support
24 service, a plan of action to upgrade from providing limited
25 advanced life support to providing advanced life support to take
26 place over a period of not more than 2 years.

27 (c) The medical control authority protocols for the ambulance
28 operation upgrade license, along with a recommendation from the
29 medical control authority under which the ambulance operation



1 operates that the ambulance operation upgrade license be issued by
2 the department.

3 (d) Other information required by the department.

4 (9) The statewide emergency medical services coordination
5 committee shall review the information described in subsection
6 (8)(c) and make a recommendation to the department as to whether or
7 not an ambulance operation upgrade license should be granted to the
8 applicant.

9 (10) Upon receipt of a completed application as required under
10 subsection (8), a positive recommendation under subsection (9), and
11 payment of a \$100.00 fee, the department shall issue to the
12 applicant an ambulance operation upgrade license. Subject to
13 subsection (12), the license is valid for 2 years from the date of
14 issuance and is renewable for 1 additional 2-year period. An
15 application for renewal of an ambulance operation upgrade license
16 ~~shall~~**must** contain documentation of the progress made on the plan
17 of action described in subsection (8)(b). In addition, the medical
18 control authority under which the ambulance operation operates
19 shall annually file with the statewide emergency medical services
20 coordination committee a written report on the progress made by the
21 ambulance operation on the plan of action described in subsection
22 (8)(b), including, but not limited to, information on training,
23 equipment, and personnel.

24 (11) If an ambulance operation is designated by its regular
25 license as providing basic life support services, then an ambulance
26 operation upgrade license issued under this section allows the
27 ambulance operation to provide limited advanced life support
28 services or advanced life support services when the ambulance
29 operation is able to staff and equip 1 or more ambulances to



1 provide services at the higher levels. If an ambulance operation is
2 designated by its regular license as providing limited advanced
3 life support services, then an ambulance operation upgrade license
4 issued under this section allows the ambulance operation to provide
5 advanced life support services when the ambulance operation is able
6 to staff and equip 1 or more ambulances to provide services at the
7 higher level. An ambulance operation shall not provide services
8 under an ambulance operation upgrade license unless the medical
9 control authority under which the ambulance operation operates has
10 adopted protocols for the ambulance operation upgrade license
11 regarding quality monitoring procedures, use and protection of
12 equipment, and patient care.

13 (12) The department may revoke or fail to renew an ambulance
14 operation upgrade license for a violation of this part or a rule
15 promulgated under this part or for failure to comply with the plan
16 of action filed under subsection (8)(b). An ambulance operation
17 that obtains an ambulance operation upgrade license must annually
18 renew its regular license under subsections (2) to (6). An
19 ambulance operation's regular license is not affected by the
20 following:

21 (a) The fact that the ambulance operation has obtained or
22 renewed an ambulance operation upgrade license.

23 (b) The fact that an ambulance operation's ambulance operation
24 upgrade license is revoked or is not renewed under this subsection.

25 (c) The fact that the ambulance operation's ambulance
26 operation upgrade license expires at the end of the second 2-year
27 period prescribed by subsection (10).

28 **(13) Beginning 6 months after the effective date of the**
29 **amendatory act that added this subsection, an ambulance operation**



1 that meets all of the following requirements may apply for an
2 ambulance operation adaptive care license under subsection (14):

3 (a) Holds an ambulance operation license that designates the
4 ambulance operation as a transporting basic life support service.

5 (b) Was a transporting basic life support service on or before
6 October 1, 2022.

7 (c) Is a transporting basic life support service that is able
8 to staff and equip 1 or more ambulances for the transport of
9 emergency patients at a life support level higher than basic life
10 support.

11 (d) Is owned or operated by or under contract to a local
12 governmental unit and is designated by that local governmental unit
13 as the ambulance operation providing transporting service to that
14 local governmental unit.

15 (e) Will provide the services described in subdivision (c)
16 only to the local governmental unit described in subdivision (d),
17 and only in response to a 9-1-1 call or other call for emergency
18 transport.

19 (14) An ambulance operation meeting the requirements of
20 subsection (13) that applies for an ambulance operation adaptive
21 care license shall include all of the following information in the
22 application provided by the department:

23 (a) Verification of all of the requirements of subsection
24 (13), including, but not limited to, a description of the staffing
25 and equipment to be used in providing the higher level of life
26 support services.

27 (b) The medical control authority protocols for the ambulance
28 operation adaptive care license, along with a recommendation from
29 the medical control authority under which the ambulance operation



operates that the ambulance operation adaptive care license be issued by the department.

(c) Other information required by the department.

(15) The statewide emergency medical services coordination committee shall review the information described in subsection (14) and make a recommendation to the department as to whether or not an ambulance operation adaptive care license should be granted to the applicant.

(16) Upon receipt of a completed application as required under subsection (14) and a positive recommendation under subsection (15), the department shall issue to the applicant an ambulance operation adaptive care license. Subject to subsection (18), the ambulance operation adaptive care license is valid for 4 years from the date of issuance.

(17) An ambulance operation adaptive care license issued under this section allows the ambulance operation to provide limited advanced life support services when the ambulance operation is able to staff and equip 1 or more ambulances to provide services at the limited advanced life support level. An ambulance operation shall not provide services under an ambulance operation adaptive care license unless the medical control authority under which the ambulance operation operates has adopted protocols for the ambulance operation adaptive care license regarding quality monitoring procedures, use and protection of equipment, and patient care.

(18) The department may revoke or fail to renew an ambulance operation adaptive care license for a violation of this part or a rule promulgated under this part. An ambulance operation that obtains an ambulance operation adaptive care license must annually



1 renew its regular license under subsections (2) to (6). An
2 ambulance operation's regular license is not affected by the
3 following:

4 (a) The fact that the ambulance operation has obtained or
5 renewed an ambulance operation adaptive care license.

6 (b) The fact that an ambulance operation's ambulance operation
7 adaptive care license is revoked or is not renewed under this
8 subsection.

9 (c) The fact that the ambulance operation's ambulance
10 operation adaptive care license expires as prescribed under
11 subsection (16).